



POLICE DEPARTMENT

July 10, 2023

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In the Matter of the Charges and Specifications :

Case No.

- Against - :

2022-25171

Detective Salvatore Rizzo :

Tax Registry No. 955390 :

Intel CIS FIO Program :

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Nishat Tabassum, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Marissa Gillespie, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE EDWARD A. CABAN
ACTING POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Salvatore Rizzo, on or about September 27, 2020, at approximately 0308, while assigned to INT CIS and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that he pointed his gun at § 87(2)(b) without police necessity.

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FORCE GUIDELINES

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on May 17, 2023. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The CCRB called § 87(2)(b) (hereinafter § 87(2)(b) and offered Body-Worn Camera (hereinafter BWC) of four different members of service that were present on the date of the incident, including Respondent's BWC. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondent Not Guilty.

ANALYSIS

The following is a summary of the facts which are not in dispute.

On September 27, 2020, Respondent was a Field Intelligence Officer (hereinafter "FIO") in the 67 Precinct and on patrol with members of different FIO teams. (Tr. 38) At approximately 0300 hours, Respondent observed two men in a car that was backed into a driveway with its headlights on. (Tr. 39) § 87(2)(b) was sitting in the rear passenger side and his brother was in the driver's seat. Respondent stated that § 87(2)(b) and his brother appeared to be unconscious. (Tr. 39) Respondent and the other officers approached the vehicle and started knocking on the back passenger side window. After approximately 50 seconds of Respondent and Officer Bautista

knocking, § 87(2)(b) woke up. (CCRB Ex. 1 at 0:45-1:35) Once awake, § 87(2)(b) began to move around the back seat of the vehicle. The officers ordered § 87(2)(b) to “stop moving” and to “not reach” (CCRB Ex. 4 at 1:33-1:36) § 87(2)(b) then moved his hands down toward the seat, prompting Respondent to point his firearm at § 87(2)(b) for approximately three seconds, while yelling: “Let me see your hands.” (*Id.* at 1:36-1:39) Respondent then lowered his firearm and Officer Bautista opened the passenger side door for § 87(2)(b) to exit the vehicle. (*Id.* at 1:40-1:45)

The sole charge against Respondent in this matter alleges that Respondent pointed his firearm at § 87(2)(b) without police necessity.

§ 87(2)(b) testified that on the night of the incident he and his brother had come home from a recording studio. They both had smoked marijuana in the car on their way home. (Tr. 24) His brother parked in the driveway adjacent to § 87(2)(b) residence; neither of them had a key, so they fell asleep inside the car waiting for someone to open the door to the house. (Tr. 21) § 87(2)(b) estimated that he and his brother were asleep in the car for about an hour and a half before he woke up and observed the officers surrounding them. (Tr. 15) He recalled that he felt nervous, and he heard his brother screaming at the officers and “a bunch of lights flashing.” (Tr. 16) Due to the officers’ flashlights, § 87(2)(b) admitted he did not see the firearm pointed at him, stating, “Even if I wanted to see what was pointed in my face, I couldn’t. It was like a million lights in my eyes.” (Tr. 25) § 87(2)(b) corroborated Respondent’s testimony and explained that when he woke up, he began moving his hands around to find his phone “around the seats and in front of me to see if I dropped it.” (Tr. 29)

Respondent does not deny that he pointed his firearm at § 87(2)(b) and the BWC entered into evidence confirms his actions. He explained that his initial concern was that the occupants of the car were shot, stabbed, had overdosed, or had a medical condition that rendered them unconscious. (Tr. 39) Respondent and Officer Bautista were on the passenger side of the car trying to wake § 87(2)(b) up, while the other officers were on the driver's side. When § 87(2)(b) brother woke up, he put his hand on the gearshift, leading Respondent to believe he might attempt to flee. (Tr. 40-41) § 87(2)(b) brother instantly became combative, and began yelling and cursing at the officers. (Tr. 41)

§ 87(2)(b) did not immediately wake up, despite his brother yelling and the officers continuously knocking on the window that he was asleep against. (Tr. 43) Once he did wake, Respondent observed § 87(2)(b) look around and "drop his right hand in between the door and the seat, where [Respondent] can't see it." (Tr. 43) Respondent testified that for safety reasons, at that moment, he pulled out his firearm and pointed it at § 87(2)(b) because he believed he might have been reaching for a weapon. Respondent verbally directed § 87(2)(b) to "show his hands" and when he complied, Respondent immediately re-holstered his weapon. Both § 87(2)(b) and his brother were removed from the vehicle by other officers and a subsequent search of the vehicle was conducted. Marijuana and other drug-related paraphernalia was recovered from the vehicle and the driver was issued a summons. (Tr. 44-45)

Patrol Guide 221-01 sets forth an objective standard for analyzing the use of force: The reasonableness of the use of force is based upon the totality of the circumstances known by the member of service at the time of the use of force. An officer's decision to display or draw his firearm "should be based on an articulable belief that the potential for serious physical injury is present." I find the CCRB has failed to meet its burden of proof by a preponderance of the

relevant, credible evidence that Respondent pointed his firearm at § 87(2)(b) without police necessity.

In this case, the material factual assertions in § 87(2)(b) testimony are corroborated by Respondent's version of events as well as the video recordings of the incident. Respondent credibly testified that upon his initial approach toward the vehicle, he was concerned for the safety of the occupants given their seemingly unconscious state. Once the driver of the car woke up, he was combative and his furtive movements toward the gear shift made Respondent nervous. The driver's actions elevated the Respondent's concerns for his safety and that of his fellow officers.

When § 87(2)(b) woke up, he began looking around and by his own admission, moving his hands around the seat to see if he had dropped his phone. (Tr. 29-30) At this point, § 87(2)(b) hands were not visible to Respondent and were reaching for an item. (Tr. 43; CCRB Ex. 4 at 1:36-1:39) Respondent then verbally warned § 87(2)(b) to stop moving and show his hands. When § 87(2)(b) did not immediately comply, Respondent reasonably determined that the potential for serious physical injury existed if § 87(2)(b) was reaching for a weapon.

At that moment, the windows of the vehicle were still up and the doors were locked, so it would not have been practical or effective for Respondent to use any other weapon available to him on his duty belt. He credibly explained at trial that he ruled out the use of either pepper spray or his Taser as likely to cause undesirable collateral damage to his fellow officers. This was a rational decision under the circumstances. Moreover, as soon as § 87(2)(b) hands were visible to Respondent and the potential for serious physical injury dissipated, Respondent re-holstered his firearm as required by the Patrol Guide.

This Tribunal finds that Respondent used only the reasonable force necessary to ensure his safety and that of his fellow officers at a time when § 87(2)(b) was searching for an item with his hands in a manner which was not visible to the officers. I further find that Respondent operated in good faith and in furtherance of his law enforcement responsibilities. The actions taken by Respondent when he issued § 87(2)(b) a verbal warning and momentarily pointed his gun at § 87(2)(b) were prudent and necessary based upon what he reasonably believed pursuant to his training and experience.

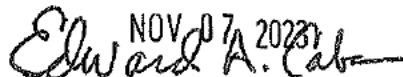
Accordingly, I find Respondent Not Guilty of Specification 1.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

NOV 07 2023

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

Honorable Edward A. Caban
Acting Police Commissioner
New York City Police
Department One Police Plaza
New York, NY 10038

July 7, 2023

Re: Detective Salvatore Rizzo

Disciplinary Case No. 2022-25171

Commissioner Caban:

The above-referenced case was tried on May 17, 2023, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Detective Salvatore Rizzo was charged with the following:

1. Police Officer Salvatore Rizzo, on or about September 27, 2020 at approximately 0308 while assigned to INT CIS and on duty, in the vicinity of [REDACTED] § 87(2)(b) Kings County, wrongfully used force, in that he pointed his gun at [REDACTED] § 87(2)(b) without police necessity.
PG 221-01, page 3, FORCE GUIDELINES

CCRB has reviewed the June 22, 2023, draft decision of Assistant Deputy Commissioner - Trials Vanessa Facio-Lince (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

The Court found Respondent Rizzo not guilty of specifications one (1). It is respectfully requested that you reject ADCT Facio-Lince’s finding regarding specification one (1) and find the Respondent guilty and accept CCRB’s recommended penalty of forfeiture of TWENTY (20) vacation days for the following reason:

SUMMARY OF FACTS

On September 27, 2020, at approximately 3:08 AM, Detective Rizzo, accompanied by more than six officers of the Criminal Intelligence Section in the 67th precinct, approached the vehicle belonging to § 87(2)(b) and his brother § 87(2)(b) were both sound asleep, in the vehicle which was parked in their residential driveway. The MOS initially intended to do a wellness check on the § 87(2)(b) brother, but after they woke up § 87(2)(b) in the driver's seat and had him roll down his window, they smelled the odor of marijuana coming from inside the vehicle. Detective Rizzo, a Police officer at the time, approached the rear passenger door where § 87(2)(b) was still asleep. When he woke up, he put his right hand between the seat and the door and Detective Rizzo pulled out his gun and pointed it at § 87(2)(b) chest.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

CCRB Exhibit 1, is the body worn camera footage of Police Officer Joseph Batista who was at the scene. The body worn camera depicts at 1:03 a flashlight being shone on § 87(2)(b) illustrating how he is sleeping in the back of the vehicle. At 1:33, § 87(2)(b) his older brother turns around from the driver seat to wake him up as shown by the white sleeve. It is at this moment the click of a gun is heard indicative of the gun being unholstered. At 1:44 § 87(2)(b) exits the vehicle, there is no sign of resistance or non-compliance.

CCRB Exhibit 2, is the body worn camera footage of Lieutenant Joseph Grimm who was a supervisor at the scene. At 1:04 it is illustrated that more than six officers were at the scene, there was nothing on the front seat. At 1:37 a gun is shown to be pointed at § 87(2)(b) CCRB Exhibit 2a is a screenshot of Detective Rizzo pointing his gun at § 87(2)(b) chest.

CCRB Exhibit 3, is the body worn camera footage of Sergeant David Grieco who was at the scene. At 0:52 of the body worn camera footage, it is shown that the driver is being held back. At 1:06 it is shown that the back passenger, § 87(2)(b) is passed out sleeping with his mouth open clearly of no harm to anyone in his surroundings. At 1:18 Detective Rizzo points his gun at § 87(2)(b) chest.

CCRB Exhibit 4, is the body worn camera footage of the Respondent. At 0:31 the body worn camera shows that the headlights of the subject car is on. At 0:52 it is shown that the back passenger, § 87(2)(b) is passed out sleeping with his mouth open clearly of no harm to anyone in his surroundings. At 1:20 the flashlight is shown on § 87(2)(b) who is the back passenger, followed by 1:37 where the gun is pointed at § 87(2)(b) chest by Detective Rizzo after he is woken up. CCRB Exhibit 4a, is a screenshot taken from Detective Rizzo's body worn camera footage which shows Detective Rizzo pointing his gun at § 87(2)(b) CCRB Exhibit 4b is a side by side of Police Officer Batista (left) and Detective Rizzo's (right) body worn camera, with Detective Rizzo's body worn camera audio as the background.

§ 87(2)(b) provided credible testimony stating that he was asleep in the back of the car after a recording session in the studio with his brother. He explained that they were locked out of the house, and his mother was asleep, preventing them from gaining entry. § 87(2)(b) emphasized that he did not possess anything that could pose a threat to others. Upon waking up to the sudden presence of bright lights, his immediate instinct was to reach for his phone. Since the incident, § 87(2)(b) shared that he has developed anxiety, rarely venturing outside unless it is work-related, and has developed a deep-seated distrust of law enforcement. His testimony

powerfully illustrates the profound and enduring impact of mistreatment and intimidation on an individual's mental and emotional well-being.

Detective Rizzo testified that it was a wellness check to ensure that the two occupants in the car were not harmed (i.e. shot, stabbed, overdosed, etc.). Respondent was under the belief that the safety of himself and other officers on scene would be at risk when he observed § 87(2)(b) wake up and Respondent lost sight of his hands. Respondent testified that for safety reasons at that moment, he pulled out his firearm because he believed that § 87(2)(b) may have been reaching for a weapon. Upon verbally directing § 87(2)(b) to “show his hands” and § 87(2)(b) complying, Respondent reholstered his firearm. Respondent also testified that he was the only one to draw his firearm during the incident.

RESPONDENT IS GUILTY OF POINTING A FIREARM WITHOUT POLICE NECESSITY

CCRB disagrees with the tribunal’s finding that Detective Rizzo used “only the reasonable force necessary” by pointing his gun at § 87(2)(b) chest (Draft Decision p. 6). ADCT Facio-Lince writes, “*the actions taken by Respondent when he issued § 87(2)(b) a verbal warning and momentarily pointed his gun at § 87(2)(b) were prudent and necessary based upon what he reasonable believed pursuant to his training and experience*” (Draft Decision p.6). Patrol Guide 221-01 sets forth an objective standard for analyzing the use of force: The reasonableness of the use of force is based upon the totality of the circumstances known by the member of service at the time of the use of force. An officer’s decision to display or draw his firearm “should be based on an articulable belief that the potential for serious physical injury is present.”

Here, the gravity of Detective Rizzo’s actions cannot be understated. In a controlled situation where a flashlight illuminates the inside of the subject vehicle, he pointed his gun directly at the chest of seventeen-year-old § 87(2)(b) despite § 87(2)(b) being unaware of the threat. This act is inexcusable, as § 87(2)(b) posed no harm to anyone in his vicinity. Considering the circumstances as a whole, it becomes abundantly clear that Detective Rizzo's decision to employ such force was completely unreasonable. § 87(2)(b) who testified credibly at the hearing, was asleep at the time, and there was no evidence or knowledge of any potential danger inside the vehicle that could have justified such a drastic response. With the car confined to the driveway and no escape route available, § 87(2)(b) had no choice but to step out of the vehicle upon awakening and comprehending the situation. Throughout the entire incident, § 87(2)(b) remained compliant and respectful, refraining from any confrontational behavior towards Detective Rizzo or the other officers present. The undeniable truth is that there was no valid reason to believe that serious physical harm was imminent. When individuals cannot feel safe even in their own driveways, within the confines of their own cars, it raises serious concerns about where true security can be found. The evidence unequivocally demonstrates that Detective Rizzo endangered the safety of a civilian—a seventeen-year-old young black man—by intentionally pointing a gun at him. And let’s be clear if § 87(2)(b) were white, Respondent would not have pointed his firearm at § 87(2)(b) chest. The only way his actions are justified, is if you believe black skin is inherently dangerous.

The evidence presented in the CCRB exhibits paints a clear picture of the events that unfolded during the encounter between Officer Batista, Sergeant Grieco, Detective Rizzo, and § 87(2)(b). It is crucial to analyze this evidence in order to shed light on the unjust actions taken by Detective Rizzo and the potential dangers they pose to individuals' safety.

Firstly, CCRB Exhibit 1 and Exhibit 3 BWC Footage clearly demonstrate that § 87(2)(b) had his hand in his pants, indicating no threat. In addition, CCRB Exhibit 1 reveals that the officers were aware of § 87(2)(b) sleeping state, as evidenced by the interaction

where § 87(2)(b) is awakened by a hand at 1:33. § 87(2)(b) startled reaction and subsequent compliance at 1:42 further highlight his prioritization of personal safety (i.e. physically being harmed by Detective Rizzo's weapon) over Detective Rizzo's stated intention of a "wellness check." Furthermore, CCRB Exhibit 2 provides insight into Detective Rizzo's excessive use of force. § 87(2)(b) is simply a bewildered teenager who is abruptly awakened by a swarm of police officers. While § 87(2)(b) hand momentarily disappears from view, Detective Rizzo's claim of not knowing § 87(2)(b) intentions does not justify the immediate threat required to warrant pointing a gun. The reputation of the neighborhood is irrelevant to the events unfolding in the § 87(2)(b) driveway. Detective Rizzo's decision to employ potentially lethal force was unjustifiable. Additionally, CCRB Exhibit 2a clearly indicates that Detective Rizzo was fully aware that § 87(2)(b) did not possess any suspicious items that could have warranted such extreme actions. There was no bulge, L shape, firearm, or any other threatening object visible. The subsequent search of the car was an unwarranted attempt to rationalize an unreasonable course of action.

Lastly, it is crucial to consider Detective Rizzo's alarming history. This incident marks his first instance of pointing a gun at an individual without proper justification, but his record reveals a concerning pattern. With 32 other allegations against him, including instances of gun pointing during vehicle stops and searches, as well as refusal to provide pertinent information, Detective Rizzo's behavior poses a significant risk to public safety. If we condone the use of "wellness checks" as a pretext for such behavior, no one can feel secure in their own driveway when faced with a gun-wielding police officer.

In conclusion, the evidence provided by the CCRB exhibits is clear and compelling. It exposes the unjust actions of Detective Rizzo and raises concerns about the safety of individuals during encounters with law enforcement. § 87(2)(b) trauma and fear of returning to school serve as a stark reminder that we must prioritize the safety of citizens over the self-interest of officers. It is imperative that we hold Detective Rizzo accountable for his unwarranted use of force and ensure that such incidents do not repeat themselves, for the sake of public trust and safety. The tribunal chose to ignore this evidence, and the trauma of a young black man who had to live through this incident and carry it with him in his day to day experience. Furthermore, the decision demonstrates that we live in a nation that doesn't see anything wrong with the harming of black people. We implore you to review the evidence and right this incorrect decision and find Respondent guilty.

For the forgoing reasons, it is respectfully requested that you reject ADCT Facio-Lince's findings regarding Specification one (1) and impose the penalty of forfeiture of 20 vacation days in accordance with the matrix.

Respectfully submitted,

Nishat Tabassum

Nishat Tabassum, Esq.

APU Prosecutor

NYC Civilian Complaint Review Board

cc: Marissa B. Gillespie, Esq.
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